suant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

1. The Executive order of April 28, 1917, creating Public Water Reserve No. 50, is hereby revoked so far as it affects the following-described land in New Mexico:

NEW MEXICO PRINCIPAL MERIDIAN

T. 14 S., R. 17 W.,
Sec. 26, NE¼.

The area described contains 160 acres. This land is isolated from other Federally-owned lands and is suitable for disposition under section 2455 of the Revised Statutes, as amended.

2. The Executive order of July 10, 1919, creating Public Water Reserve No. 65, is hereby revoked so far as it affects the following-described lands in New Mexico:

NEW MEXICO PRINCIPAL MERIDIAN

T. 1 S., R. 20 E.,
Sec. 34, SW¼SE¼ and SE¼SW¼.
T. 2 S., R. 20 E.,
Sec. 15, NE¼.

The areas described aggregate 240 acres. These lands are primarily suitable for grazing and are within New Mexico Grazing District No. 6, established by order of the Secretary of the Interior dated April 8, 1935.

3. The Executive order of April 17, 1926, creating Public Water Reserve No. 107, is hereby revoked so far as it affects the following-described land in Arizona:

GILA AND SALT RIVER MERIDIAN

T. 9½ N., R. 2 E.,
Sec. 25, W½NW¼.

The area described contains 80 acres. This land is primarily grazing in character.

No applications for these lands may be allowed under the homestead, small-tract, or desert-land laws, or any other nonmineral public-land laws unless the land in question has already been classified as valuable or suitable for such types of application or shall be so classified upon consideration of an application.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Land and Survey Offices in Phoenix, Arizona, and Santa Fe, New Mexico, respectively, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Land and Survey Offices in Phoenix, Arizona, and Santa Fe, New Mexico, respectively.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 1, 1951.

[F. R. Doc. 51–5201; Filed, May 4, 1951; 8:45 a. m.]

[Public Land Order 716]

ALASKA

REVOKING EXECUTIVE ORDER NO. 8223 OF AUGUST 21, 1939, WHICH MADE CERTAIN TOWN SITE LANDS AVAILABLE FOR THE USE OF ALASKA ROAD COMMISSION FOR AVIATION FIELD PURPOSES

By virtue of the authority vested in the President by the acts of June 25, 1910, 36 Stat. 847 (43 U. S. C. 141), and March 12, 1914, 38 Stat. 305, 306 (48 U. S. C. 303), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 8223 of August 21, 1939, which modified Executive Order No. 1919½ of April 21, 1914, reserving certain lands in Alaska for town site purposes, to the extent necessary to permit the S½ block 38 and all of block 45 in Nenana Town Site to be used by the Alaska Road Commission for aviation field purposes, is hereby revoked.

The lands affected by this revocation will be reappraised and offered at public sale pursuant to the laws and regulations relating to railroad town sites in Alaska.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 1, 1951.

[F. R. Doc. 51–5200; Filed, May 4, 1951; 8:45 a. m.]

PROPOSED RULE MAKING

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR, Parts 2, 3]

[Docket Nos. 8736, 8975, 8976, 9175]

TELEVISION BROADCAST SERVICE

NOTICE OF PROPOSED RULE MAKING

In the matters of amendment of § 3.606 of the Commission's rules and regulations, Docket Nos. 8736 and 8975; amendment of the Commission's rules, regulations, and Engineering Standards Concerning the Television Broadcast Service, Docket No. 9175; Utilization of frequencies in the band 470 to 890 Mcs for Television Broadcasting, Docket No. 8976.

1. Paragraph "II–B–1" of Appendix A attached to the third notice of further proposed rule making (FCC 51–244) (16 F. R. 3072) issued by the Commission herein on March 22, 1951, provides as follows:

(1) A channel assigned to a community in the Commission's Table of Television Assignments shall be available, without the necessity of rule making proceedings, to any other community located within 15 miles of the assigned community provided the minimum sep-